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## Appeal Decision

Site visit made on 24 August 2026

**by A Wright BSc (Hons) MRTPI**

an Inspector appointed by the Secretary of State

**Decision date: 11 September 2026**

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### **Appeal Ref: 6010023**

#### **111 to 113 Cauldwell Hall Road, Ipswich IP4 5BN**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Danny Stephan of Sterling State Lettings Ltd against the decision of Ipswich Borough Council.
  - The application Ref is IP/26/00124/FUL.
  - The development proposed is the change of use from commercial use (Class E) to a mixed-use development comprising five dwelling flats (Class C3) and commercial use (Class E) including external alterations and removal of a pitched roof at first floor level.
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### **Decision**

1. The appeal is dismissed.

### **Preliminary Matters**

2. The appellant submitted a proposed highway improvement plan with the appeal documents. The Procedural Guide for Planning Appeals states that the appeal process should not be used to evolve a scheme, and it is important that what is considered by the Inspector at appeal is essentially the same as that considered by the Council and by interested parties at the application stage. My consideration of this plan could cause procedural unfairness or prejudice to interested parties. Therefore, my decision is based only on the originally submitted drawings.
3. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. As this could affect the issues and matters in this case, the Council and the appellant were invited to make further comments. My decision reflects the latest version of the Framework, and the responses received on it.

### **Main Issue**

4. The main issue in this appeal is the effect of the proposed development on highway safety, with particular regard to parking and access arrangements.

### **Reasons**

5. The appeal site comprises a two-storey commercial building with a supermarket occupying part of the ground floor on the east side of the busy Cauldwell Hall Road. There is a wide section of footway outside the building which narrows further south along the road. Cauldwell Hall Road and other main roads in the area have parking restrictions, with double and single yellow lines, though there is unrestricted parking along nearby residential streets. The single yellow lines restrict parking from 8am to 6pm on Mondays to Saturdays.

6. At my daytime site visit, although only a snapshot in time, there was significant on-street parking on nearby roads with only a few spaces available. Due to the narrowness of some streets and few alternative available spaces, some cars were parked partly on footways resulting in only limited space for pedestrians, particularly on Springland Close.
7. Further, I observed several vehicles stopping on and partly blocking the footway outside the appeal site whilst their occupants used the supermarket or delivered items to nearby houses, causing an obstruction to pedestrians using this part of the road. The proposal includes five two-bedroom flats on the first floor with the shop and some commercial space retained on the ground floor.
8. Policy DM22 of the Council's Core Strategy and Policies Development Plan Document Review 2022 (DPD) requires all development to have regard to the adopted car parking guidance. The Suffolk Guidance for Parking 2023 (the guidance) requires the provision of two parking spaces for each two-bedroom flat, with 0.25 visitor car parking spaces per dwelling. Therefore, according to the guidance, 11 car parking spaces should be provided, though a reduced figure may be considered with robust and agreed highway mitigation.
9. Section 5 of the guidance lists the criteria where a relaxation of the parking standards may be acceptable in urban areas. This includes where on-street parking is generally restricted by legal orders, but that is not wholly the case in this instance given the unrestricted parking in residential streets close by.
10. Census data from 2021 indicates that 76.9% of households within the area own one car or more. Using this data, the appellant asserts that a worst-case scenario where 76.9% of the proposed flats have occupants who own two cars or vans would result in an additional eight vehicles parked on the surrounding highway.
11. The appellant carried out a parking stress survey at 00:30 on two weekdays in October 2025. This was in accordance with the Lambeth methodology which aims to capture maximum levels of residential parking demand when most residents' vehicles are reasonably expected to be parked up. Even discounting parking spaces on Spring Road and Cauldwell Hall Road, the survey found that there were 12-17 available parking spaces on street at these times.
12. Nonetheless, the surveys were undertaken when significantly more on-street parking is available as there are no parking restrictions on single yellow lines at those times. From evidence submitted by interested parties and from my observations on site, there appears to be some parking stress in nearby residential roads at other times when the single yellow line restrictions apply.
13. There would be adequate space to store cycles and future residents would have access to local shops, services and buses into the town centre, with a train station just over 800m away. There is no opportunity within the site to provide off-street parking, so none is proposed. Whilst there are references to the scheme being 'car free', the Transport Statement confirms that there is no mechanism available to prevent future residents from owning private cars and parking on the streets close to the site.
14. The Framework Travel Plan includes measures to reduce the potential for private car ownership by future residents of the scheme, such as a travel information pack, bus vouchers and one free bike service per flat. However, as future

residents of the new flats may well own vehicles, the proposed scheme would lead to an increase in demand for on-street parking spaces on nearby roads.

15. In the absence of any assessment of available spaces when the single yellow line parking restrictions apply, I cannot be certain that additional vehicles generated by the proposed development could be accommodated. This could lead to an increase in inappropriate parking, including further parking on footways on nearby residential roads and outside the site. This would exacerbate obstructions to pedestrians, particularly those with young children, pushchairs and disabilities, harming highway and pedestrian safety.
16. There would be four accesses at street level serving the proposed flats and commercial premises. The existing railings on the pavement outside the supermarket would avoid the access to flats 4 and 5 being blocked by parked vehicles. Nevertheless, indiscriminate parking on the footway outside the other accesses would restrict safe and suitable access to the other parts of the proposed development, including the communal bin and bike stores and the remaining three flats. It would also prevent the efficient delivery of goods and access by service, refuse collection and emergency vehicles.
17. The Transport Statement indicates that the appellant would consider a proportionate contribution towards a highways scheme designed and delivered by Suffolk County Council, the highways authority (HA), to deter informal parking at this location. The appellant also suggests a condition requiring a detailed scheme for off-site highway improvement works, including physical measures to deter indiscriminate parking along the site frontage. However, it is unclear how such a scheme would affect pedestrian movement, and there is no substantive evidence that the HA would support it.
18. I note that the HA state that some developments in highly sustainable urban areas can be considered car free, and it does not object to the proposal based on the site's access to services and public transport and the parking survey results. It suggests several conditions, including one to ensure the provision and retention of the proposed secure cycle storage. Nonetheless, in this case there is no means to achieve car free development and insufficient evidence that the proposal would not result in further inappropriate parking.
19. Consequently, I conclude that the proposed development would harm highway safety, with particular regard to parking and access arrangements. This would be contrary to Policies DM21 and DM22 of the DPD. Amongst other things, these set out parking requirements and require development to not unacceptably impact on highway safety. They also seek to ensure safe and suitable access for all users, including people with disabilities and reduced mobility, and the efficient delivery of goods and access by service, refuse collection and emergency vehicles.

### **Other Matters**

20. The proposal is for fewer flats than a previously refused scheme<sup>1</sup>. There is also reference to pre-application correspondence between the appellant and the Council on the potential number of flats which could be accommodated on the site. However, I must determine the appeal scheme on its merits based on the plans and information before me.

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<sup>1</sup> Planning application ref: IP/25/00776/FUL

21. The Council did not find harm or development plan conflict in relation to several other matters, including character and appearance, living conditions, space provision, flood risk, cycle and refuse storage, biodiversity, noise, housing mix, impacts on heritage assets and trip generation. Nevertheless, even if I were to agree with the Council on these points, the absence of harm would be a neutral matter which would not carry weight in favour of the proposed scheme.
22. The proposal would be likely to have a significant effect, either alone or in combination on one or more of the European designated sites scoped into the Suffolk Coast Recreational Disturbance Avoidance and Mitigation Strategy (RAMS) due to its location within the 13km zone of influence of the protected sites. However, notwithstanding that the appellant has made the necessary RAMS contribution, given my conclusion below there is no need to consider the implications of the proposal on the protected sites because the scheme is unacceptable for other reasons.

### **Planning Balance**

23. Policy S4 of the Framework states that proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against its national decision-making policies. The Framework supports the delivery of a substantial increase in the supply of homes, and Policies HO7, L2 and TC2 outline various benefits which should be given substantial weight in decision-making. These include providing homes which will contribute towards meeting evidenced accommodation needs, making better use of underutilised buildings, and supporting the vitality and viability of centres.
24. The Council accepts that it is currently unable to demonstrate a five year supply of housing referred to in the Framework. The appeal scheme would contribute five dwellings towards the supply of housing within the settlement of Ipswich, making more efficient use of underutilised floorspace in an urban location with good access to services and public transport. It would retain some commercial space, and provide some economic benefits, including supporting the vitality and viability of the local centre in which it is located. I accord these benefits substantial weight.
25. In contrast, the proposed scheme would harm highway safety, with particular regard to parking and access arrangements. Whilst it would not have a severe adverse impact on the transport network in terms of Policy TR3 of the Framework, the proposed scheme would contravene Policy TR4 where it seeks to minimise the scope for conflict between pedestrians and vehicles and requires proposals to allow for the efficient delivery of goods, and ease of access by service and emergency vehicles. This is a planning harm which attracts considerable weight. Consequently, in this case, the benefits of the proposal would not be substantially outweighed by the adverse effects, and thus the appeal scheme would be contrary to Policy S4 of the Framework.

### **Conclusion**

26. For the reasons given above, the proposal conflicts with the development plan and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

*A Wright* INSPECTOR